

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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NOËL GROSSO, a/k/a NOËLLE GROSSO,

Plaintiff,

-against-

THE CITY OF NEW YORK, MICHAEL
BLOOMBERG, Mayor of the City of New York,
RAYMOND KELLY, Commissioner of the New
York City Police Department, JOSEPH ESPOSITO,
Chief of Department, New York City Police
Department, JOHN J. COLGAN, Deputy Chief
and Commanding Officer, Pier 57, DERRICK
BAITY, MARK E. KEEGAN, JESSICA KNATZ,
LINDA HOLMES, SULMAN ZAHEER, JULIO
CALLE, FRANCISCO ALCANTARA, NICHOLAS
GRAVINO, PRINCE WILLIAMS, STEVEN RICCA,
GREGORY BELL, FRANK MAROUSEK, JOHN
WEISER, CHARLES CHAPLAR, CYNTHIA
ROSARIO, ABDIEL ANDERSON, EUNPA CHUN,
TIMOTHY ROGERS, DARREN ROCK, JORGE
ENCARNACION, DIANE HAYES, and JOHN and
JANE DOES # 1, 2, 10, 14, 19, 20, 25, 26, 27, and
28, individually and in their official capacities (the
names John and Jane Doe being fictitious, as the true
names of these defendants are presently unknown),

Defendants.
-----X

05 Civ. 5080 (KMK)

**SECOND AMENDED
COMPLAINT AND
JURY DEMAND**

Plaintiff Noël Grosso, by her attorneys Allegaert Berger & Vogel LLP, as and for
her First Amended Complaint against Defendants The City of New York, Michael Bloomberg,
Raymond Kelly, Joseph Esposito, John J. Colgan, Derrick Baity, Mark E. Keegan, Jessica Knatz,
Linda Holmes, Sulman Zaheer, Julio Calle, Francisco Alcantara, Nicholas Gravino, Prince
Williams, Steven Ricca, Gregory Bell, Frank Marousek, John Weiser, Charles Chaplar, Cynthia
Rosario, Abdiel Anderson, Eunpa Chun, Timothy Rogers, Darren Rock, Jorge Encarnacion,

Diane Hayes and John and Jane Does, # 1 - # 29 (collectively, "Defendants"), upon knowledge as to her own acts and status and upon information and belief as to all other matters, alleges as follows:

PRELIMINARY STATEMENT

1. Plaintiff brings this claim as a result of the City's policy and practice of using mass-arrest tactics against Plaintiff during the Republican National Convention held in New York City on August 26, 2004 through September 2, 2004. Plaintiff alleges the following: violation of her civil rights pursuant to the First, Fourth and Fourteenth Amendments to the United States Constitution, 42 U.S.C. § 1983, and Article I, Sections 8 and 12 of the New York State Constitution and New York Criminal Procedure § 140.20; false arrest; false imprisonment; malicious prosecution; abuse of process; negligence; personal injuries; intentional and negligent infliction of emotional distress; replevin; and conversion.

2. On August 31, 2004, Plaintiff was one of apparently many hundreds of people swept up in the police arrests that took place in connection with political protests throughout the City of New York. Plaintiff, however, did not participate in these protests. Rather, Plaintiff, a photographer, was on her way home from a camera store near Union Square when she stopped for several minutes to photograph protesters and others in the area. At approximately 7:00 p.m., New York City police officers detained her, restrained her with plastic handcuffs (flexcuffs), and held her in Union Square until approximately 10:00 p.m. when she was put onto a bus and transported to Pier 57. The officer who arrested Plaintiff stated to Plaintiff, in words or substance, that he did not want to arrest Plaintiff and that she had not done anything wrong.

3. At Pier 57, the floor was soaked with dirt, oil, and anti-freeze, among other

things. Plaintiff therefore stood for approximately sixteen and a half hours. During this time, Plaintiff's camera, worth approximately \$6,000, and film were confiscated by the police.

Plaintiff was not advised of how long she would be held or exactly what she was being charged with. Plaintiff was released on September 2, 2004 at approximately 8:00 p.m., at which time she was issued a Desk Appearance Ticket.

4. On or about November 8, 2004, at Plaintiff's second court appearance in the criminal charges brought against her, the Assistant District Attorney informed the judge that the City had no evidence that Plaintiff had done anything wrong. Accordingly, the Criminal Court of the City of New York dismissed all charges against Plaintiff. At Plaintiff's first court appearance, the Assistant District Attorney offered Plaintiff an adjournment in contemplation of dismissal ("ACD"), which Plaintiff rejected.

5. Several months later, Plaintiff still experiences severe pain and numbness in her wrists and fingers as a result of the officers' use of tight flexcuffs. After several months of diligent and repeated efforts to recover her personal property, Ms. Grosso finally received her cameras (which she needs to earn her livelihood) -- damaged -- and all but one roll of film.

6. As the direct and proximate result of the New York City Police Department's policy and practice of using mass-arrest tactics against Plaintiff during the Republican National Convention, Plaintiff's civil rights have been violated, Plaintiff has sustained injury to her wrists and hands, continues to suffer from emotional distress, and has not recovered one roll of her film.

JURISDICTION AND VENUE

7. This court has jurisdiction over Plaintiff's claims for the violation of Plaintiff's constitutional and civil rights pursuant to 28 U.S.C. §§ 1331 and 1343(a).

8. This court has jurisdiction over Plaintiff's claims for declaratory and injunctive relief pursuant to 28 U.S.C. §§ 2201 and 2202 and Rule 57 of the Federal Rules of Civil Procedure.

9. This court has jurisdiction over Plaintiff's claims for the violation of Plaintiff's state constitutional rights and all other claims arising under state law pursuant to 28 U.S.C. 1367(a).

10. Venue is proper in this court pursuant to 28 U.S.C. § 1391(b) in that Plaintiff's claims arose in the Southern District of New York.

PARTIES

11. Plaintiff NOËL GROSSO, also known as NOËLLE GROSSO, is a resident of New York, New York.

12. Defendant CITY OF NEW YORK is a municipal corporation within the State of New York.

13. Defendant MICHAEL BLOOMBERG is the Mayor of the City of New York and is sued both in his individual and official capacities.

14. Defendant RAYMOND KELLY is the Police Commissioner for the City of New York and is sued both in his individual and official capacities.

15. Defendant JOSEPH ESPOSITO is the Chief of Department of the New York Police Department and is sued both in his individual and official capacities.

16. Defendant JOHN J. COLGAN is a Deputy Chief of the New York Police Department, responsible for overseeing the New York Police Department's operations at Pier 57, and is sued in his individual and official capacities.

17. Defendant DERRICK BAITY is a Detective employed by the New York Police Department and is sued both in his individual and official capacities.

18. Defendant MARK E. KEEGAN is a Lieutenant of the New York Police Department, and is sued in his individual and official capacities.

19. Defendant JOHN DOE # 1 is an individual who, on the evening and night of August 31, 2004, was employed by the New York Police Department, wore a shield bearing number "417", was on or in the vicinity of East 16th Street between Park Avenue South and Irving Place, and is sued both in his individual and official capacities.

20. Defendant JOHN DOE # 2 is an individual who, on the evening and night of August 31, 2004, was employed by the New York Police Department, wore a shield bearing number "3836", was on or in the vicinity of East 16th Street between Park Avenue South and Irving Place, and is sued both in his individual and official capacities.

21. Defendant Jessica Knatz is a police officer of the New York Police Department, and is sued in her individual and official capacities.

22. Defendant Linda Holmes is a police officer of the New York Police Department, and is sued in her individual and official capacities.

23. Defendant Sulman Zaheer is a police officer of the New York Police Department, and is sued in his individual and official capacities.

24. Defendant Julio Calle is a police officer of the New York Police Department, and is sued in his individual and official capacities.

25. Defendant Francisco Alcantara is a police officer of the New York Police Department, and is sued in his individual and official capacities.

26. Defendant Nicholas Gravino is a police officer of the New York Police Department, and is sued in his individual and official capacities.

27. Defendant Prince Williams is a police officer of the New York Police Department, and is sued in his individual and official capacities.

28. Defendant JOHN DOE # 10 is an individual who, on the evening and night of August 31, 2004, was employed by the New York Police Department, wore a shield bearing number "29997", was on or in the vicinity of East 16th Street between Park Avenue South and Irving Place, and is sued both in his individual and official capacities.

29. Defendant Steven Ricca is a police officer of the New York Police Department, and is sued in his individual and official capacities.

30. Defendant Gregory Bell is a police officer of the New York Police Department, and is sued in his individual and official capacities.

31. Defendant Frank Marousek is a police officer of the New York Police Department, and is sued in his individual and official capacities.

32. Defendant JOHN DOE # 14 is an individual who, on the evening and night of August 31, 2004, was employed by the New York Police Department, wore a shield bearing number "5975", was on or in the vicinity of East 16th Street between Park Avenue South and Irving Place, and is sued both in his individual and official capacities.

33. Defendant John Weiser is a police officer of the New York Police Department, and is sued in his individual and official capacities.

34. Defendant Charles Chaplar is a police officer of the New York Police Department, and is sued in his individual and official capacities.

35. Defendant Cynthia Rosario is a police officer of the New York Police Department, and is sued in her individual and official capacities.

36. Defendant Abdiel Anderson is a police officer of the New York Police Department, and is sued in his individual and official capacities.

37. Defendant JOHN DOE # 19 is an individual who, on the evening and night of August 31, 2004, was employed by the New York Police Department, wore a shield bearing number "25975", was on or in the vicinity of East 16th Street between Park Avenue South and Irving Place, and is sued both in his individual and official capacities.

38. Defendant JOHN DOE # 20 is an individual who, on the evening and night of August 31, 2004, was employed by the New York Police Department, wore a shield bearing number "2659", was on or in the vicinity of East 16th Street between Park Avenue South and Irving Place, and is sued both in his individual and official capacities.

39. Defendant Eunpa Chun is a police officer of the New York Police Department, and is sued in his individual and official capacities.

40. Defendant Timothy Rogers is a police officer of the New York Police Department, and is sued in his individual and official capacities.

41. Defendant Darren Rock is a police officer of the New York Police Department, and is sued in his individual and official capacities.

42. Defendant Jorge Encarnacion is a police officer of the New York Police Department, and is sued in his individual and official capacities.

43. Defendant JOHN DOE # 25 is an individual who, on the evening and night of August 31, 2004, was employed by the New York Police Department, wore a shield bearing number "2949", was on or in the vicinity of East 16th Street between Park Avenue South and Irving Place, and is sued both in his individual and official capacities.

44. Defendant JOHN DOE # 26 is an individual who, on the evening and night of August 31, 2004, was employed by the New York Police Department, wore a pin or clothing bearing the last name of Gomez, was on or in the vicinity of East 16th Street between Park Avenue South and Irving Place, and is sued both in his individual and official capacities.

45. Defendant JOHN DOE # 27 is an individual who, on the evening and night of August 31, 2004, was employed by the New York Police Department, wore a pin or clothing bearing the last name of Jackson, was on or in the vicinity of East 16th Street between Park Avenue South and Irving Place, and is sued both in his individual and official capacities.

46. Defendant JOHN DOE # 28 is an individual who, on the evening and night of August 31, 2004, was employed by the New York Police Department, wore a pin or clothing bearing the last name of Manzi, was on or in the vicinity of East 16th Street between Park Avenue South and Irving Place, and is sued both in his individual and official capacities.

47. Defendant Diane Hayes is a police officer of the New York Police Department, and is sued in her individual and official capacities.

BACKGROUND

48. The Republican National Convention ("RNC") was held in New York, New

York between August 30, 2004 and September 2, 2004. Defendants were aware in advance of the RNC that numerous demonstrations were planned to take place during the RNC. Indeed, many groups had applied to defendant City of New York for permits to conduct protests during the RNC throughout the city.

49. Months prior to the commencement of the RNC, Defendants began to prepare to make mass arrests during the RNC. As part of this preparation, Defendants developed a plan to ensure that those arrested were processed slowly and not released until the RNC had ended. To accomplish their scheme, Defendants adopted mass arrest procedures whereby Defendants arrested individuals without probable cause, used nets to corral those individuals, and placed those individuals in an inadequately equipped and hazardously maintained detention facility.

50. Defendants' plan was intended to punish and retaliate against individuals who were protesting, as well as individuals who were merely witnessing the protests or merely walking by at the time the arrests were made. Defendants acted with the intention of discouraging political protests, freedom of expression, and freedom of speech.

51. Defendants' plan included detaining those arrested in a facility located at Pier 57 in New York, New York, which facility was unfit for human occupancy and contained numerous signs so stating. On or about July 28, 2004, Defendants entered into an agreement with the owner of Pier 57 to lease the premises to detain those arrested there, knowing that Pier 57 was not and would not be fit for human occupancy during the RNC and that those detained there would be subject to health hazards.

52. Defendants insisted on fingerprinting every individual arrested during these

mass arrests, but failed to do so in a timely manner. Defendants detained those arrested at Pier 57 for more than 24 hours and purposely had no means to fingerprint them while at Pier 57.

53. While at Pier 57, many individuals were arrested and had their personal property seized. Throughout their detention, many individuals were denied access to attorneys.

54. During the RNC, Defendants defied two court orders issued by the New York State Supreme Court which directed Defendants to permit those arrested access to attorneys and later to bring those arrested to court or release them. Defendants failed to comply with both orders, for which contempt proceedings are now pending.

55. Defendants implemented a mass arrest policy whereby Defendants arrested or caused to be arrested individuals indiscriminately and without probable cause who were peacefully assembled in the vicinity of demonstrations and were engaged in lawful activity, observing such activity, or merely passing by.

FACTS

56. Plaintiff Noëlle Grosso is a resident of New York, New York and is a professional photographer. She lives within walking distance of Union Square.

57. On August 31, 2004, Ms. Grosso was one of apparently hundreds of people swept up in police arrests that took place in connection with political protests throughout the City of New York.

58. Ms. Grosso did not participate in any protests in New York City on August 31, 2004, or on any other day. On August 31, 2004, at approximately 6:00 p.m., Ms. Grosso was walking east towards Union Square, on her way home from a camera store west of Union Square, when she saw protesters peacefully gathered in the area of Union Square. Because she is a

professional photographer and had her camera equipment with her, Ms. Grosso remained in the vicinity of Union Square to photograph the protesters.

59. Shortly thereafter, at approximately 7:00 p.m., Ms. Grosso was walking towards her home when she, along with all others standing on that block, was detained by New York City police officers -- without any notice, warning, or announcement by the officers -- on East 16th Street between Park Avenue South and Irving Place.

60. The officers detained Ms. Grosso and held her and the other detainees in Union Square until approximately 10:00 p.m., at which time they were restrained with plastic handcuffs (flexcuffs) and put on a bus for approximately an hour, during which time the air conditioning in the bus was off. While on the bus, another detainee removed her own flexcuffs. In retaliation, the officers tightened the flexcuffs on all detainees, including Ms. Grosso. Ms. Grosso voiced serious complaints that the flexcuffs were too tight around her wrists and were causing her enormous pain, but none of the officers assisted Ms. Grosso.

61. The bus transported Ms. Grosso and the other detainees from the Union Square vicinity to Pier 57. At approximately midnight, Ms. Grosso arrived at Pier 57 where she waited for approximately one and one half hours in line to have her flexcuffs removed.

62. Ms. Grosso was then placed in a co-ed cell where she remained until approximately 4:15 a.m. The floor of the holding cell, like the floors of all of Pier 57, was soaked with dirt, oil, gas, and antifreeze, among other things. Other than the filthy, toxic ground, there was nowhere for those incarcerated to sit, so Ms. Grosso remained standing for the entirety of her confinement at Pier 57 -- approximately sixteen hours.

63. On September 1, 2004, at approximately 4:15 a.m., Defendant Baity confiscated Ms. Grosso's personal belongings including her camera, worth approximately \$6,000, and her film.

64. At approximately 4:45 a.m., Ms. Grosso was then placed in an all female cell where she remained -- standing -- until approximately 2:45 p.m. At approximately 7:30 or 8:00 a.m., Ms. Grosso was moved to yet another cage at Pier 57. By this time, the officers had already transported many of the detainees from Pier 57, so the officers wiped down the cages at Pier 57 in an effort to deceive the public from learning of the hazardous conditions at Pier 57.

65. At approximately 3:15 p.m., the officers again placed Ms. Grosso in flexcuffs. Ms. Grosso again complained that the flexcuffs were too tight, but the officers ignored her complaints. Ms. Grosso was then escorted to a van with other detainees.

66. The officer driving the van drove erratically, causing Ms. Grosso and the other detainees to be bounced around the back of the van. Upon the van's arrival at 100 Centre Street, the officers left Ms. Grosso and the other detainees in the back of the van, flexcuffed, with no air conditioning, for approximately one hour.

67. The officers then drove the van to the back entrance where they removed the flexcuffs from the detainees, including Ms. Grosso. The officers then placed daisy chains on Ms. Grosso and the other detainees, approximately six detainees to a chain.

68. Upon her entry to 100 Centre Street through the metal detector, Ms. Grosso was subjected for approximately five minutes to an invasive hand search.

69. At approximately 5:00 p.m., the officers placed Ms. Grosso into a crowded cell where she remained for approximately four hours.

70. At approximately 9:00 p.m., the officers moved Ms. Grosso into a larger cell that had benches and access to a payphone.

71. Ms. Grosso, agitated that she not yet been provided with an opportunity to make a telephone call, became very upset. In retaliation, a female officer threatened to send Ms. Grosso to the psychiatric ward if she did not calm down. At approximately 11:00 p.m., Ms. Grosso was permitted to make her first telephone call.

72. At approximately 1:00 a.m., Ms. Grosso was again placed in a daisy chain and escorted to have her fingerprints and mug shot taken.

73. Shortly thereafter, Ms. Grosso was escorted to the 12th Floor and placed in a very cold cell with other detainees.

74. On September 2, 2004, at approximately 1:00 p.m., Ms. Grosso was again daisy chained with other detainees and brought to another floor, where she sat on the floor. While there, a dark skinned male officer in his mid-thirties attempted to antagonize the detainees, including Ms. Grosso, calling them "Bush haters" and "hypocrites" and further exclaimed to Ms. Grosso, "Look at you now!" This officer, as well as other officers, repeatedly stated that all detainees were being held until President Bush left New York City. They also stated to Ms. Grosso that her name would be placed on a watch list and she would therefore have trouble traveling.

75. Shortly thereafter, paramedics and firemen interviewed Ms. Grosso and told her that they could not provide her with water or anything else, including Visine, which Ms. Grosso specifically requested to relieve pain in her eyes.

76. At approximately 4:30 p.m., Ms. Grosso was placed into another cell where she was held until approximately 7:00 p.m.

77. At approximately 7:00 p.m., Ms. Grosso was escorted to a court room where she was later called to a desk and issued a Desk Appearance Ticket requiring her appearance in court on October 8, 2004.

78. On September 2, 2004, at approximately 8:00 p.m., Ms. Grosso was finally released.

79. As a result of the tight flexcuffs, Ms. Grosso suffered severe pain in her wrists for approximately four and one half months and had to wear wrist guards. Ms. Grosso continues to experience numbness and pain in her wrists and fingers.

80. Within a day of her release, Ms. Grosso developed a cough and serious illness that lasted approximately three weeks after her release.

81. On or about October 8, 2004, Plaintiff appeared in court pursuant to the Desk Appearance Ticket. At this time, the Assistant District Attorney offered Plaintiff an adjournment in contemplation of dismissal ("ACD"), which Plaintiff rejected. The court adjourned the case to November 8, 2004.

82. On or about November 8, 2004, Plaintiff again appeared in court. The Assistant District Attorney informed the judge that the City had no evidence that Plaintiff had done anything wrong. Accordingly, the Criminal Court of the City of New York dismissed all charges against Plaintiff.

83. On or about December 8, 2004, after many unsuccessful attempts, Ms. Grosso finally received back her camera and most of her film. The camera had been damaged while in the defendant City's possession. One roll of film remains missing.

84. On or about November 29, 2004, Plaintiff caused to be filed a Notice of Claim pursuant to New York General Municipal Law § 50-e. A hearing pursuant to New York General Municipal Law § 50-h was held on March 15, 2005.

CLAIMS FOR RELIEF

FIRST CLAIM FOR RELIEF

(Violations of the First and Fourteenth Amendments
to the United States Constitution and 42 U.S.C. § 1983)

85. Plaintiff repeats and realleges the foregoing paragraphs as if fully set forth herein.

86. Defendants' policy and practice of implementing, enforcing, encouraging and ratifying the use of mass arrest tactics, without probable cause, as a means to detain Plaintiff, who was peaceably assembling, and of detaining her for an unnecessary and lengthy period of time, subjecting her to cruel, inhumane and hazardous conditions, depriving her of food and medical assistance, and seizing her property, has deprived Plaintiff of the rights, privileges, remedies, and immunities guaranteed to her as a citizen of the United States, in violation of the First and Fourteenth Amendments to the United States Constitution and 42 U.S.C. § 1983.

87. As a direct and proximate result of Defendants' unlawful behavior, Plaintiff has suffered, and continues to suffer, injury and damages, including without limitation, physical and mental pain, suffering and mental anguish.

88. No adequate remedy at law exists for the irreparable injury Defendants have caused Plaintiff through their violations of Plaintiff's First and Fourteenth Amendments to the United States Constitution and 42 U.S.C. § 1983. Accordingly, Defendants should be enjoined from the policy and practice of implementing, enforcing, encouraging and ratifying the use of mass arrest tactics, without probable cause.

SECOND CLAIM FOR RELIEF

(Violations of the Fourth and Fourteenth Amendments
to the United States Constitution and 42 U.S.C. § 1983)

89. Plaintiff repeats and realleges the foregoing paragraphs as if fully set forth herein.

90. Defendants' policy and practice of implementing, enforcing, encouraging and ratifying the use of mass arrest tactics, without probable cause, as a means to detain Plaintiff, who was peaceably assembling, and of detaining her for an unnecessary and lengthy period of time, subjecting her to cruel, inhumane and hazardous conditions, depriving her of food and medical assistance, and seizing her property has deprived Plaintiff of the rights, privileges, remedies, and immunities guaranteed to her as a citizen of the United States, in violation of the Fourth and Fourteenth Amendments to the United States Constitution and 42 U.S.C. § 1983.

91. As a direct and proximate result of Defendants' unlawful behavior, Plaintiff has suffered, and continues to suffer, injury and damages, including without limitation, physical and mental pain, suffering and mental anguish.

92. No adequate remedy at law exists for the irreparable injury Defendants have caused Plaintiff through their violations of Plaintiff's Fourth and Fourteenth Amendments to the

United States Constitution and 42 U.S.C. § 1983. Accordingly, Defendants should be enjoined from the policy and practice of implementing, enforcing, encouraging and ratifying the use of mass arrest tactics, without probable cause.

THIRD CLAIM FOR RELIEF

(Article I, Section 8 of the New York State Constitution)

93. Plaintiff repeats and realleges the foregoing paragraphs as if fully set forth herein.

94. Defendants' policy and practice of implementing, enforcing, encouraging and ratifying the use of mass arrest tactics, without probable cause, as a means to detain Plaintiff, who was peaceably assembling, and of detaining her for an unnecessary and lengthy period of time, subjecting her to cruel, inhumane and hazardous conditions, depriving her of food and medical assistance, and seizing her property has deprived Plaintiff of the rights, privileges, remedies, and immunities guaranteed to her as a citizen of the State of New York, in violation of Article I, Section 8 of the New York State Constitution

95. As a direct and proximate result of Defendants' unlawful behavior, Plaintiff has suffered, and continues to suffer, injury and damages, including without limitation, physical and mental pain, suffering and mental anguish.

96. No adequate remedy at law exists for the irreparable injury Defendants have caused Plaintiff through their violation of Article I, Section 8 of the New York State Constitution. Accordingly, Defendants should be enjoined from the policy and practice of implementing, enforcing, encouraging and ratifying the use of mass arrest tactics, without probable cause.

FOURTH CLAIM FOR RELIEF

(Article I, Section 9 of the New York State Constitution)

97. Plaintiff repeats and realleges the foregoing paragraphs as if fully set forth herein.

98. Defendants' policy and practice of implementing, enforcing, encouraging and ratifying the use of mass arrest tactics, without probable cause, as a means to detain Plaintiff, who was peaceably assembling, and of detaining her for an unnecessary and lengthy period of time, subjecting her to cruel, inhumane and hazardous conditions, depriving her of food and medical assistance, and seizing her property has deprived Plaintiff of the rights, privileges, remedies, and immunities guaranteed to her as a citizen of the State of New York, in violation of Article I, Section 9 of the New York State Constitution

99. As a direct and proximate result of Defendants' unlawful behavior, Plaintiff has suffered, and continues to suffer, injury and damages, including without limitation, physical and mental pain, suffering and mental anguish.

100. No adequate remedy at law exists for the irreparable injury Defendants have caused Plaintiff through their violation of Article I, Section 9 of the New York State Constitution. Accordingly, Defendants should be enjoined from the policy and practice of implementing, enforcing, encouraging and ratifying the use of mass arrest tactics, without probable cause.

FIFTH CLAIM FOR RELIEF

(Article I, Section 12 of the New York State Constitution)

101. Plaintiff repeats and realleges the foregoing paragraphs as if fully set forth herein.

102. Defendants' policy and practice of implementing, enforcing, encouraging and ratifying the use of mass arrest tactics, without probable cause, as a means to detain Plaintiff, who was peaceably assembling, and of detaining her for an unnecessary and lengthy period of time, subjecting her to cruel, inhumane and hazardous conditions, depriving her of food and medical assistance, and seizing her property has deprived Plaintiff of the rights, privileges, remedies, and immunities guaranteed to her as a citizen of the State of New York, in violation of Article I, Section 12 of the New York State Constitution

103. As a direct and proximate result of Defendants' unlawful behavior, Plaintiff has suffered, and continues to suffer, injury and damages, including without limitation, physical and mental pain, suffering and mental anguish.

104. No adequate remedy at law exists for the irreparable injury Defendants have caused Plaintiff through their violation of Article I, Section 12 of the New York State Constitution. Accordingly, Defendants should be enjoined from the policy and practice of implementing, enforcing, encouraging and ratifying the use of mass arrest tactics, without probable cause.

SIXTH CLAIM FOR RELIEF
(False Arrest)

105. Plaintiff repeats and realleges the foregoing paragraphs as if fully set forth herein.

106. Defendants acted with intent and malice by implementing, enforcing, encouraging and ratifying their policy and practice of using mass arrest tactics, without probable cause, as a means to detain and confine Plaintiff, who was peaceably assembling and was

informed by her arresting officer at the time of her arrest that she had not committed any crime, and of detaining and confining her for an unnecessary and lengthy period of time, subjecting her to cruel, inhumane and hazardous conditions, and seizing her property.

107. Plaintiff was fully aware and conscious of her confinement and that Defendants were violating her civil rights and acting without probable cause.

108. At no time did Plaintiff consent to her confinement.

109. Defendants' arrest and confinement of Plaintiff, which were admittedly done without probable or reasonable cause and without the issuance of a warrant, were in no respect privileged and were contrary to the laws of the State of New York, including, without limitation, Article 140 of New York Criminal Procedure.

SEVENTH CLAIM FOR RELIEF
(False Imprisonment)

110. Plaintiff repeats and realleges the foregoing paragraphs as if fully set forth herein.

111. Defendants acted with intent and malice by implementing, enforcing, encouraging and ratifying their policy and practice of using mass arrest tactics, without probable cause, as a means to detain and confine Plaintiff, who was peaceably assembling and was informed by her arresting officer at the time of her arrest that she had not committed any crime, and of detaining and confining her for an unnecessary and lengthy period of time, subjecting her to cruel, inhumane and hazardous conditions, and seizing her property.

112. Plaintiff was fully aware and conscious of her confinement and that Defendants were violating her civil rights and acting without probable cause.

113. At no time did Plaintiff consent to her confinement.

114. Defendants' arrest and confinement of Plaintiff, which were admittedly done without probable or reasonable cause and without the issuance of a warrant, were in no respect privileged and were contrary to the laws of the State of New York, including, without limitation, Article 140 of New York Criminal Procedure.

EIGHTH CLAIM FOR RELIEF
(Malicious Prosecution)

115. Plaintiff repeats and realleges the foregoing paragraphs as if fully set forth herein.

116. Subsequent to arresting Plaintiff, Defendants intentionally, wrongfully and maliciously commenced or caused to be commenced, without reasonable or probable cause, a criminal proceeding against Plaintiff, which proceeding was dismissed.

NINTH CLAIM FOR RELIEF
(Abuse of Process)

117. Plaintiff repeats and realleges the foregoing paragraphs as if fully set forth herein.

118. Defendants caused Plaintiff to be arrested in an unlawful manner, issued her a desk appearance ticket, and compelled her to defend against a frivolous criminal action.

119. Defendants did so with a purpose to do harm, without economic or social excuse or justification.

120. By doing so, Defendants sought a collateral advantage, outside the legitimate ends of the process, by detaining and confining Plaintiff, who was doing nothing illegal or

wrong, in an effort to prevent her from protesting or causing any disturbance during the RNC.

TENTH CLAIM FOR RELIEF
(Intentional Infliction of Emotional Distress)

121. Plaintiff repeats and realleges the foregoing paragraphs as if fully set forth herein.

122. Defendants' policy and practice of implementing, enforcing, encouraging and ratifying the use of mass arrest tactics, without probable cause, as a means to detain Plaintiff, who was peaceably assembling and was informed by her arresting officer at the time of her arrest that she had not committed any crime, and of detaining her for an unnecessary and lengthy period of time, subjecting her to cruel, inhumane and hazardous conditions, depriving her of food and medical assistance, and seizing her property, was intentional, malicious, extreme, and outrageous and done so with the intention of causing, or disregard of a substantial probability of causing, Plaintiff severe emotional distress.

123. Defendants' acts were therefore willful, wanton, intentionally and actually malicious and oppressive, and went beyond all possible bounds of decency, thereby justifying an award of exemplary and punitive damages.

ELEVENTH CLAIM FOR RELIEF
(Negligent Infliction of Emotional Distress)

124. Plaintiff repeats and realleges the foregoing paragraphs as if fully set forth herein.

125. Defendants owed a duty to Plaintiff not to deprive Plaintiff of the rights afforded to her by the United States Constitution, the New York State Constitution, 42 U.S.C. § 1983, and the laws of the State of New York. Defendants further owed Plaintiff a duty not to

subject her to toxic and hazardous materials.

126. Defendants breached their duty to Plaintiff by, among other things, enforcing, encouraging and ratifying the use of mass arrest tactics, without probable cause, as a means to detain Plaintiff, who was peaceably assembling and was informed by her arresting officer at the time of her arrest that she had not committed any crime, by detaining her for an unnecessary and lengthy period of time; by subjecting her to cruel, inhumane and hazardous conditions; by depriving her of food and medical assistance; and by seizing her property.

127. Defendants knew or should have known that their actions would cause Plaintiff severe emotional distress.

128. As a direct and proximate result of Defendants' breach of duty owed to Plaintiff, Plaintiff has suffered and continues to suffer severe emotional distress and mental suffering.

TWELFTH CLAIM FOR RELIEF
(Negligence)

129. Plaintiff repeats and realleges the foregoing paragraphs as if fully set forth herein.

130. Defendants confiscated Plaintiff's personal belongings, including her camera and film. Defendants had a duty to maintain Plaintiff's belongings in the same condition as Defendants received them.

131. Defendants breached that duty by damaging Plaintiff's camera and by losing Plaintiff's film.

132. But for Defendants' breach, Plaintiff's camera would not have been

damaged and her film would have been returned to her.

133. As a result, Defendants caused Plaintiff to incur costs for camera repairs and further cause Plaintiff loss of income for approximately five months.

THIRTEENTH CLAIM FOR RELIEF
(Conversion)

134. Plaintiff repeats and realleges the foregoing paragraphs as if fully set forth herein.

135. Defendants intentionally confiscated Plaintiff's film to the exclusion of Plaintiff's rights to her possession of her film.

136. Defendants have failed to return to Plaintiff her film.

FOURTEENTH CLAIM FOR RELIEF
(Replevin)

137. Plaintiff repeats and realleges the foregoing paragraphs as if fully set forth herein.

138. Defendants have wrongfully and unlawfully detained Plaintiff's roll of film and have failed to return it to Plaintiff.

WHEREFORE, Plaintiff respectfully requests that:

(a) this Court issue a declaratory judgment on the first claim for relief that Defendants' policy and practice of implementing, enforcing, encouraging and ratifying the use of mass arrest tactics, without probable cause, violated Plaintiff's rights under the First and Fourteenth Amendments to the United States Constitution and 42 U.S.C. § 1983 and award Plaintiff compensatory damages in an amount to be determined;

(b) this Court issue a declaratory judgment on the second first claim for

relief that Defendants' policy and practice of implementing, enforcing, encouraging and ratifying the use of mass arrest tactics, without probable cause, violated Plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution and 42 U.S.C. § 1983 and award Plaintiff compensatory damages in an amount to be determined;

(c) this Court issue a declaratory judgment on the third first claim for relief that Defendants' policy and practice of implementing, enforcing, encouraging and ratifying the use of mass arrest tactics, without probable cause, violated Plaintiff's rights under Article I, Section 8 of the New York State Constitution and award Plaintiff compensatory damages in an amount to be determined;

(d) this Court issue a declaratory judgment on the fourth first claim for relief that Defendants' policy and practice of implementing, enforcing, encouraging and ratifying the use of mass arrest tactics, without probable cause, violated Plaintiff's rights under Article I, Section 9 of the New York State Constitution and award Plaintiff compensatory damages in an amount to be determined;

(e) this Court issue a declaratory judgment on the fifth first claim for relief that Defendants' policy and practice of implementing, enforcing, encouraging and ratifying the use of mass arrest tactics, without probable cause, violated Plaintiff's rights under Article I, Section 12 of the New York State Constitution and award Plaintiff compensatory damages in an amount to be determined;

(f) judgment be entered against Defendants and in favor of Plaintiff on the sixth first claim for relief in an amount to be determined, plus the costs and fees incurred in connection with this action, in an amount to be determined;

(g) judgment be entered against Defendants and in favor of Plaintiff on the seventh first claim for relief in an amount to be determined, plus the costs and fees incurred in connection with this action, in an amount to be determined;

(h) judgment be entered against Defendants and in favor of Plaintiff on the eighth first claim for relief in an amount to be determined, plus the costs and fees incurred in connection with this action, in an amount to be determined;

(i) judgment be entered against Defendants and in favor of Plaintiff on the ninth first claim for relief in an amount to be determined, plus the costs and fees incurred in connection with this action, in an amount to be determined;

(j) judgment be entered against Defendants and in favor of Plaintiff on the tenth first claim for relief in an amount to be determined, plus the costs and fees incurred in connection with this action, in an amount to be determined;

(k) judgment be entered against Defendants and in favor of Plaintiff on the eleventh first claim for relief in an amount to be determined, plus the costs and fees incurred in connection with this action, in an amount to be determined;

(l) judgment be entered against Defendants and in favor of Plaintiff on the twelfth first claim for relief in an amount to be determined, plus the costs and fees incurred in connection with this action, in an amount to be determined;

(m) judgment be entered against Defendants and in favor of Plaintiff on the thirteenth first claim for relief in an amount to be determined, plus the costs and fees incurred in connection with this action, in an amount to be determined;

(n) judgment be entered against Defendants and in favor of Plaintiff on

the fourteenth first claim for relief in an amount to be determined, plus the costs and fees incurred in connection with this action, in an amount to be determined;

(o) Plaintiff be awarded the costs and disbursements of this action, including attorneys' fees;

(p) Plaintiff be awarded punitive damages in the amount of \$10,000,000;
and

(q) Plaintiff have such other relief as the Court may deem just and proper.

JURY DEMAND

Pursuant to Rule 38(b) of the Federal Rules of Civil Procedure, Plaintiff demands a trial by jury in this action on all matters so triable.

Dated: New York, New York
January 3, 2006

Respectfully submitted,



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